

25STLC05908 25STLC05908

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-14

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Case Number: 25STLC05908 Hearing Date: July 14, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Joseph Eugene Scialfa's

Motion to Enforce Settlement Agreement

and for Entry of Judgment is continued to 08/20/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 08/06/2026, Plaintiff is to file proof of service of the Motion papers and Notice of New Hearing Date. The first appearance fee for Defendant Roseark, Inc. must be paid by 08/17/2026. Failure to comply with the Court's order may result in the Motion being denied.

Analysis:

On July 31, 2025, Plaintiff Joseph Eugene Scialfa ("Plaintiff") filed this action against Defendant Roseark, Inc. ("Defendant"). Proof of Substitute Service of the Summons and Complaint was filed on August 27, 2025. On October 1, 2025, Plaintiff filed a Notice of Settlement of Entire Case. At the Order to Show Cause Re: Dismissal (Settlement) on December 1, 2025, the Court dismissed the action and retained jurisdiction pursuant to Code of Civil Procedure section 664.6. (Minute Order, 12/01/25.)

On February 2, 2026, Plaintiff filed the instant Motion to Enforce Settlement Agreement and for Entry of Judgment.

Discussion

The following issues with the Motion as filed

make it improper for the Court to enforce the parties' settlement agreement and enter judgment at this time. First, the Motion is not accompanied by a proof of service showing that Plaintiff gave Defendant notice of the Motion and hearing date. Failure to give notice of a motion is not only a violation of the statutory requirements but of due process. (Code Civ. Proc., § 1005; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.) No provision in the settlement agreement waives notice.

Second, no first appearance fee has been paid with respect to Defendant. A filing fee is required for the filing of a first paper in any civil action or proceeding. (Code Civ. Proc. § 405.5.) Accordingly, the Court cannot enter a stipulated judgment against Defendant until Defendant's first appearance fee has been paid.

The Court continues the hearing on the Motion to allow these issues to be remedied.

Conclusion

Based on the foregoing, Plaintiff Joseph Eugene Scialfa's Motion to Enforce Settlement Agreement and for Entry of Judgment is continued to 08/20/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 08/06/2026, Plaintiff is to file proof of service of the Motion papers and Notice of New Hearing Date. The first appearance fee for Defendant Roseark, Inc. must be paid by 08/17/2026. Failure to comply with the Court's order may result in the Motion being denied.

Moving party to give notice.